

[20 & 21 GEO. 5.] *Pier and Harbour* [Ch. cxlii.]
Orders Confirmation (No. 2) Act, 1930.



CHAPTER cxlii.

An Act to confirm certain Provisional Orders made by the Minister of Transport under the General Pier and Harbour Act 1861 relating to King's Lynn Portsmouth and Weymouth and Melcombe Regis. [1st August 1930.]

A.D. 1930.

WHEREAS a Provisional Order made by the Minister of Transport under the General Pier and Harbour Act 1861 is not of any validity or force whatever until the confirmation thereof by Act of Parliament :

24 & 25 Vict.
c. 45.

And whereas it is expedient that the Provisional Orders made by the Minister of Transport under the said Act and set out in the schedule to this Act be confirmed by Act of Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders as set out in the schedule to this Act shall be and the same are hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full validity and force.

Confirma-
tion of
Orders in
schedule.

2. This Act may be cited as the Pier and Harbour Orders Confirmation (No. 2) Act 1930.

Short title.

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The SCHEDULE of Orders.

1. KING'S LYNN.—Construction of a quay &c.
2. PORTSMOUTH.—Construction of a pier and a slipway &c.
3. WEYMOUTH AND MELCOMBE REGIS.—Extension of quays &c.

SCHEDULE.

A.D. 1930.

KING'S LYNN DOCKS AND RAILWAY (QUAY).

Provisional Order for authorising the construction of a quay by the King's Lynn Docks and Railway Company and the levy of rates and charges in connection therewith and for other purposes. *King's Lynn.*

PRELIMINARY.

1. This Order may be cited as the King's Lynn Docks and Railway (Quay) Order 1930. *Short title.*

2. This Order shall come into operation upon the day when the Act confirming this Order is passed and that day is in this Order referred to as "the commencement of this Order." *Commencement.*

3.—(1) In this Order unless the context otherwise requires words and expression to which by any enactments incorporated therewith or applied thereto respectively meanings are assigned have in this Order the same meanings And— *Interpretation.*

"The Harbours Clauses Act 1847" means the Harbours Docks and Piers Clauses Act 1847;

"The undertaking of the Company" means the undertaking of the Company authorised by the existing Acts;

"The existing Acts" means the King's Lynn Docks and Railway Acts 1865 to 1924;

"The quay" means the quay and the works connected therewith authorised by this Order or as the case may require any part thereof;

"Authorised rates" and "authorised rate" mean respectively the rates or rate which the Company are for the time being authorised to levy demand and recover in pursuance of the existing Acts or this Order.

(2) In the application to this Order of the Harbours Clauses Act 1847—

(a) the expression "harbour dock or pier" used in that Act shall mean the quay and the works by this Order authorised;

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(b) the expressions "packet boat or Post Office packet" and "Post Office bag of letters" used in that Act shall mean respectively a vessel employed by or under the Post Office or the Admiralty for the conveyance under contract of postal packets as defined by the Post Office Act 1908 and a mail bag as defined by the same Act :

Provided that nothing in the Harbours Clauses Act 1847 or in this Order shall exempt from rates duties regulation or control any such vessel as aforesaid if she also conveys passengers or goods for hire.

UNDERTAKERS.

Under-
takers.

4. The King's Lynn Docks and Railway Company shall be the undertakers for carrying this Order into execution and are in this Order referred to as "the Company."

Incorpora-
tion of
Lands
Clauses
Acts.

5.—(1) The Lands Clauses Acts (except so much thereof as relates to the purchase and taking of lands otherwise than by agreement and to the entry upon lands by the promoters of the undertaking) are incorporated with this Order except as expressly varied thereby.

(2) For the purposes of the incorporation of the said Acts and of the Harbours Clauses Act 1847 the expression "the special Act" in those Acts shall mean this Order.

ACQUISITION OF LANDS.

Power to
take lands
by agree-
ment.

6. Subject to the provisions of this Order the Company may by agreement purchase and use such of the lands shown on the plan deposited for the purposes of this Order as may be requisite for the purposes of the works authorised by this Order and they may further by agreement purchase and hold for the purposes of this Order and other the purposes of the undertaking of the Company any additional lands not exceeding in the whole five acres but with respect to such additional lands nothing in this Order or in the Acts incorporated therewith shall exempt the Company from any indictment action or other proceedings for nuisance in the event of any nuisance being caused or permitted by them thereon.

Power to
grant
easements.

7. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may subject to the provisions of those Acts and of this Order grant to the Company for the purposes of this Order and other the purposes of the undertaking of the Company any easement right or privilege (not being an easement right or privilege of water in which other persons than the grantors have an interest) in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such easements rights and privileges respectively.

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8. Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Company may retain hold and use for such time as they may think fit or may sell let lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands and premises or any interest therein vested in them or acquired by them under this Order which may not be required for the purposes thereof or of the undertaking of the Company and may sell exchange or dispose of any rents reserved on the sale lease exchange or other disposition of such lands and premises and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

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 —
King's Lynn.
 Power to
 retain sell
 &c. lands.

LIMITS.

9.—(1) The limits within which the powers of the dockmaster of the Company may be exercised shall comprise the quay and the existing docks of the Company and entrances thereto and a distance of one hundred yards measured in all directions from any part of the quay or the said docks and entrances but not so as to supersede or interfere with otherwise than with the consent of the King's Lynn Conservancy Board the powers of the harbour master of King's Lynn in directing the navigation of vessels through the harbour or port of King's Lynn nor to permit or allow any ship or vessel to be moored within one hundred feet from the low-water mark on the west side of the river Ouse.

(2) Section 73 (Limits of powers of dockmaster) of the King's Lynn Docks and Railway Act 1865 is hereby repealed.

(3) Section 74 (Byelaws as to disposal of ballast) of the said Act of 1865 shall apply and have effect as if the limits defined by subsection (1) of this section were the limits referred to in the said section 74.

WORKS AND POWERS.

10. Subject to the provisions of this Order and subject also to such alterations (if any) in the plan and section deposited with reference to this Order as the Board of Trade may require before completion of the works the Company may on the lands belonging to them or acquired under this Order and in the lines and according to the levels and within the limits of deviation shown on the deposited plan and section make and maintain the works in the parish of Saint Margaret in the borough of King's Lynn described in the next following section.

Power to
 construct
 works.

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 Description
 of works.

11. The said works authorised by this Order are—

A quay on the eastern side of the river Ouse commencing at a point near the Ordnance bench mark on the western side of the existing North Quay wall or North Dock head of the entrance to the Alexandra Dock $1\frac{1}{2}$ chains or thereabouts northward of the south-western corner of the said quay wall or dock head the said quay extending from the said point in a northerly or north-westerly direction for a distance of 12 chains or thereabouts and terminating at or near the southern side of the entrance to the Fisher Fleet at a point 15 chains or thereabouts measured in a north-westerly direction from the south-eastern end of the Fisher Fleet.

Together with all necessary and proper piles fenders booms dolphins pontoons caissons staging coffer dams embankments piers abutments jetties river walls wharves warehouses sheds cellars storehouses landing places buoys moorings cranes hoists lifts conveyors stations sidings rails tramways junctions turntables signals bridges approaches roads gates retaining walls pipes mains cables sewers drains culverts sluices and other engines machinery appliances apparatus works and conveniences connected therewith.

The said quay will be of openwork construction.

Power to
 deviate.

12. Subject to the provisions of this Order in constructing the works by this Order authorised the Company may deviate laterally from the lines thereof as shown on the deposited plan to any extent not exceeding the limits of deviation shown on that plan and they may deviate vertically from the levels of the said works as shown on the deposited section to any extent not exceeding ten feet Provided that no deviation either lateral or vertical below high-water mark shall be made without the consent in writing of the Board of Trade.

Power to
 maintain
 and
 improve
 works.

13.—(1) Subject to the provisions of this Order the Company may within the limits defined in the section of this Order of which the marginal note is "Limits" maintain widen alter improve and extend the quay authorised by this Order and the existing works of the Company and construct maintain alter and improve embankments landing places locks slips lights beacons roads sewers drains watercourses cuts gas and water pipes electric light and power works and other works and conveniences which may be found necessary for the accommodation of vessels and traffic and any such works and conveniences as aforesaid which at the commencement of this Order have been constructed or provided or are in course of construction or provision shall be deemed to have been constructed or provided under the powers conferred by this section.

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(2) No line of rails or tramway constructed under the powers of this Order shall be used for the public conveyance of passengers unless and until it has been inspected and certified by the Minister of Transport to be fit for that use. A.D. 1930.
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(3) Any electric light and power or other apparatus constructed and maintained under this Order shall be so constructed used and maintained as to prevent any interference with telegraphic communication by means of any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General.

(4) Nothing in this Order shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electricity (Supply) Acts 1882 to 1928 to which the provisions of section 15 of the Electric Lighting Act 1882 and section 17 of the Electric Lighting (Clauses) Act 1899 apply except in accordance with and subject to the provisions of those sections.

14. Any person who wilfully obstructs any person acting under the authority of the Company in setting out the lines of the works authorised by this Order or who pulls up or removes any poles or stakes driven into the ground for the purpose of such setting out shall for every such offence be liable to a penalty not exceeding five pounds. *Penalty for obstructing works.*

15.—(1) If the quay is not completed within five years from the commencement of this Order then on the expiration of that period the powers given by this Order to the Company for making the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed. *Powers to cease in certain events.*

(2) If the quay is not substantially commenced within three years from the commencement of this Order or such extended time as the Minister of Transport may in the circumstances by order direct the said powers shall cease.

(3) If the construction of the quay after having been substantially commenced is virtually suspended for twelve consecutive months the said powers shall cease except as to so much of the works as is then completed unless the Minister of Transport by order direct that the said powers continue and remain in force but subject to the foregoing provision as to completion in any event within five years from the commencement of this Order.

(4) A certificate of the Minister of Transport to the effect that the works have not been substantially commenced or that they have been virtually suspended for twelve consecutive months shall for the purposes of this section be conclusive evidence of the facts stated in such certificate.

16.—(1) The Company may deepen dredge scour excavate and improve so much of the foreshore and bed of the river Ouse as lies within the limit of one hundred yards from any part of *Power to dredge.*

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A.D. 1930. the quay to the extent necessary to secure a sufficient waterway
— and approach to the quay for vessels using the same and anchorage
King's Lynn. for such vessels.

(2) All sand mud and other materials dredged up or removed shall be the property of the Company and they may sell or otherwise dispose of or remove or deposit the same as they think fit. Provided that no sand mud or other material shall be laid down or deposited in any place below high-water mark without the consent in writing of the Board of Trade having been first obtained. Provided also that no sand mud or other material shall be laid down or deposited upon any lands of the London and North Eastern Railway Company or upon any lands of the Midland and Great Northern Railways Joint Committee without the consent in writing of the said company or of the said joint committee as the case may be having been first obtained.

(3) The powers of the Company under this section shall be exerciseable subject to the provisions of the section of this Order of which the marginal note is "Crown rights" and in particular and without prejudice to that general limitation any consent given to the exercise of such powers by the Commissioners of Crown Lands or the Board of Trade on behalf of His Majesty may be given subject to such restrictions and conditions including the payment by the Company to the Commissioners of Crown Lands or the Board of Trade of royalties rents or sums of money in respect of materials raised from any place below high-water mark and sold by the Company under this section or in respect of any place below high-water mark upon which materials may be deposited as may be fixed by the Commissioners of Crown Lands or the Board of Trade as the case may be.

Power to
purchase
dredgers &c.

17. The Company may provide purchase take on lease hire and use such steam or other dredgers eroders engines lighters or other vessels machinery and apparatus as they may think necessary for effecting the purposes of this Order and may let the same on hire for such sums and upon and subject to such terms and conditions as they may think fit or may sell or dispose of the same. All sums received in respect of any such letting on hire shall be deemed to form part of the revenue of the undertaking of the Company and all moneys realised by any such sale shall be applied towards carrying into effect any of the purposes of the Company to which capital is properly applicable.

Applica-
tion of bye-
laws of
Company.

18. All byelaws rules and regulations of the Company for the time being in force relating to the undertaking or the existing docks of the Company shall with such modifications as may be necessary to make them applicable to the quay apply to the quay and may be enforced by the Company accordingly.

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19.—(1) Any byelaws which after the commencement of this Order may be made by the Company in exercise of the power in that behalf conferred on them by section 83 of the Harbours Clauses Act 1847 or by section 74 (Byelaws as to disposal of ballast) of the King's Lynn Docks and Railway Act 1865 may provide for imposing a penalty not exceeding forty shillings for the breach or non-observance of any of the byelaws.

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Further provision as to byelaws.

(2) No such byelaw shall come into operation until it has received the allowance and confirmation of the Minister of Transport and that allowance and confirmation shall be sufficient for all purposes :

Provided that in the case of any such byelaw which the said Minister in consultation with the Board of Trade shall deem primarily to concern the interests of navigation the provisions of this section shall apply as if the said Board were substituted for the said Minister and the allowance and confirmation of any such byelaw by the Minister of Transport or the Board of Trade respectively shall be sufficient evidence of compliance with the provisions of this section.

(3) Sections 84 and 85 of the Harbours Clauses Act 1847 shall not apply with reference to any such byelaw as is referred to in subsection (1) of this section or to the Company in respect thereof.

20.—(1) The following sections and schedule of the under-mentioned Acts namely :—

Power to levy rates and charges.

The King's Lynn Docks and Railway Act 1865

Section 77 (Rates payable on goods)

Section 79 (Rates to be charged for the use of cranes and weighing machines)

Section 80 (The Company may charge for the trouble of warehousing unloading &c.)

Schedule A as amended by sections 5 and 8 of the King's Lynn Dock Act 1877

The King's Lynn Dock Act 1869

Section 28 (As to rates for use of quays and sheds) excepting all words after the words "shipping and unshipping goods"

The King's Lynn Dock Act 1877

Section 6 (Tonnage rates payable on vessels)

Section 7 (Further rate if vessels remain in dock longer than fourteen days)

Section 8 (Alteration of rate on wheat &c.)

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— using the quay passengers landing and embarking at and animals
King's Lynn. and goods shipped or unshipped landed re-landed received or
delivered at the quay or loaded weighed or warehoused and the
use of warehouses stores sheds cranes tramways weighing and
measuring machines and work labour or services performed by the
Company and for the purposes of such extension and application
of the said sections and schedule the expressions "the docks" or
"the Alexandra Dock" or "the quays" where used therein shall
be deemed to mean the quay and the expressions "within the
docks" or "in the said dock" shall be construed as "at the quay"
The Company may levy demand and receive rates tolls dues and
charges in respect of the quay and the use thereof and in respect
of the matters aforesaid not exceeding those respectively pre-
scribed in the said sections and schedule and all such rates tolls
dues and charges shall be recoverable in the same manner as rates
tolls dues and charges which the Company are authorised by the
existing Acts to demand and receive.

(2) Sections 25 and 26 of the Harbours Clauses Act 1847 shall
not be incorporated with this Order.

Revision
of rates.

21.—(1) If it is represented by application in writing to
the Minister of Transport (in this section referred to as "the
Minister")—

(a) by any chamber of commerce or shipping or any repre-
sentative body of traders or any person who in the
opinion of the Minister is a proper person for the purpose ;
or

(b) by the Company ;

that under the circumstances then existing the authorised rates
or any of them should be revised the Minister if he thinks fit
may make an order revising the authorised rates referred to in
the application or any of them and may fix the date as from which
such order shall take effect and thenceforth such order shall
remain in force until the same expires or is revoked or modified
by a further order of the Minister made in pursuance of this
section. Provided that before making an order under this
section the Minister shall cause an inquiry to be held with reference
thereto in pursuance of the Board of Trade Arbitrations &c. Act
1874 as applied by this section.

(2) Where upon an application for revision of authorised
rates or an authorised rate an order has been made or the Minister
has decided not to make an order no further application for a
revision of the rates or rate to which the application related shall
be made within twelve months from the date of such order or
decision as the case may be.

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(3) The provisions of Part I of the Board of Trade Arbitrations &c. Act 1874 shall apply for the purposes of this section— A.D. 1930.
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(a) as if the Minister were referred to therein in lieu of the Board of Trade ;

(b) as if the person or persons duly authorised to hold any inquiry thereunder were the rates advisory committee constituted under the Ministry of Transport Act 1919 or any sub-committee thereof to which the said advisory committee may under section 2 of the Harbours Docks and Piers (Temporary Increase of Charges) Act 1920 have delegated their powers or in the event of the said advisory committee ceasing to exist some persons with similar qualifications to be appointed for the purpose by an order of the Minister under section 2 of the said Act of 1874; and

(c) as if in section 4 of the said Act of 1874 the words " under the seal of the Minister of Transport " were substituted for the words " by writing under the hand of the President or of one of the secretaries of the Board."

(4) An application made to the Minister under this section shall be accompanied by such information and particulars as the Minister may consider relevant certified in such manner as he may require and the Minister and the body or persons holding an inquiry for the purposes of this section may call for such documents and accounts as they may consider relevant and may hear such witnesses as they shall think fit and shall have power to take evidence on oath and for that purpose may administer oaths.

22. The Company may confer vary or extinguish exemptions from and compound with any person with respect to the payment of rates tolls dues or charges authorised by this Order but so that no preference be in any case given to any person over any other person using the works by this Order authorised under the like circumstances and that anything done under this section shall not prejudice the other provisions of this Order. Power to vary exemptions and compound for rates.

23. The Company may (so far as the rates tolls dues and charges specified in the said Acts of 1865 1869 and 1877 do not extend) demand and recover such reasonable rates charges or other consideration as they may determine for the use of any buildings yards roads rails sidings tramways machines mooring posts buoys works and conveniences belonging to or provided by the Company or in respect of any services rendered by them in connection with the quay or the undertaking of the Company. Charges for use of buildings services &c

24. The dockmaster of the Company may prevent the removal or sailing from within the limits defined in the section of this Order of which the marginal note is " Limits " of any vessel Dockmaster may prevent sailing of vessels.

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A.D. 1930. in respect of which or of the goods imported or exported therein
 — any rates tolls dues or charges are payable until evidence has been
King's Lynn. produced to him of the payment of those rates tolls dues or charges
 to the collector.

Application
 of certain
 provisions
 of existing
 Acts.

25.—(1) The following sections of the undermentioned Acts
 namely :—

The King's Lynn Docks and Railway Act 1865	Section 75 (Power to Company to appoint meters and weighers)
The King's Lynn Docks and Railway (Further Powers) Act 1889	Section 17 (Powers as to lighting) Section 18 (Provision for protection of the Postmaster- General)
	Section 19 (Supply of water)
	Section 24 (Damage to dock by vessels)

shall be deemed to be incorporated in this Order and the said
 sections of the said Act of 1889 shall apply and have effect as if the
 works by this Order authorised were referred to in those sections
 respectively in addition to the docks or other works of the Com-
 pany referred to in those sections and the said section 24 shall
 have effect as if the words " or from any part of the quay " were
 added at the end of that section.

(2) Section 14 (Abolishing and limiting certain dues) of the
 said Act of 1889 shall be construed as if the expression " the
 docks " where used in that section included the quay.

(3) Section 63 (For the protection of the Dock Company)
 of the King's Lynn Conservancy Act 1897 shall apply and have
 effect as if the expressions " the docks of the dock company "
 and " the said docks " therein contained included the works by
 this Order authorised.

LIGHTS.

Permanent
 lights on
 works.

26.—(1) After the completion of the works by this Order
 authorised the Company shall at the outer extremity of those
 works below high-water mark of ordinary spring tides exhibit
 and keep burning every night from sunset to sunrise such lights
 (if any) and take such other steps for the prevention of danger to
 navigation as the Corporation of Trinity House of Deptford
 Strond shall from time to time direct.

(2) If the Company fail to comply in any respect with the
 provisions of this section they shall be liable on summary con-
 viction to a penalty not exceeding twenty pounds and in the case

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of a continuing offence to an additional penalty not exceeding two pounds for every day on which after conviction thereof they so fail. A.D. 1930.
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27. In case of injury to or destruction or decay of the works by this Order authorised or any part thereof so far as the same shall be constructed on under or over any tidal waters or tidal lands below high-water mark of ordinary spring tides the Company shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Corporation of Trinity House of Deptford Strond and shall apply to that Corporation for directions as to the means to be taken and if the Company fail to comply with the provisions of this section the Company shall be liable on summary conviction to a penalty not exceeding ten pounds and in the case of a continuing offence to an additional penalty not exceeding one pound for every day during which they omit after conviction thereof so to apply or refuse or neglect to obey any direction given in reference to the means to be taken. Provision against danger to navigation.

MISCELLANEOUS.

28. The Company shall at all times keep at convenient places on the quay and in obedience to any requirements which may be made by the Board of Trade lifebuoys and lifelines in good order and fit and ready for use. Lifebuoys to be kept.

29. Sections 12 and 13 16 to 19 49 50 77 and 78 of the Harbours Clauses Act 1847 shall not be incorporated with this Order. Application of Act 10 & 11 Vict. c. 27.

30. Officers of the Board of Trade and Ministry of Transport and police officers acting in the execution of their duty shall at all times have free ingress passage and egress to along and from the works by this Order authorised without payment. Officers exempt from rates.

31. Section 25 (Company not to be liable for loss by fire &c.) of the King's Lynn Docks and Railway (Further Powers) Act 1889 is hereby repealed. Repeal of section 25 of Act of 1889.

32. For the protection of the King's Lynn Conservancy Board (hereinafter referred to as "the conservancy board") the following provisions shall apply and have effect unless otherwise agreed in writing between the conservancy board and the Company :— For protection of King's Lynn Conservancy Board.

- (1) The Company shall before depositing at the office of the Ministry of Transport or in the case of works below high-water mark of ordinary spring tides the Board of Trade working drawings of the quay in accordance with

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section 7 of the General Pier and Harbour Act 1861 Amendment Act deliver a copy of such working drawings to the conservancy board and the said Ministry (or the Board of Trade as the case may be) shall before approving any such working drawings take into consideration any representations which may be made to them by the conservancy board. A copy of any such representations shall be furnished to the Company at or previously to the time when they are submitted to the said Ministry (or the Board of Trade):

- (2) Twenty-one days at least before commencing under the sections of this Order of which the marginal notes are respectively "Power to maintain and improve works" and "Power to dredge" or either of those sections any works in the bed of the river Ouse the Company shall supply to the conservancy board particulars of the said works proposed to be carried out by them. If the conservancy board object to the said works and of such objection shall give notice in writing to the Company before the expiration of the said period of twenty-one days the Company shall not carry out the said works otherwise than in accordance with such particulars as shall be agreed upon in writing between the Company and the conservancy board or in default of agreement as shall be prescribed by the Board of Trade on the application of either party after notice in writing to the other of them :
- (3) Notwithstanding anything contained in the section of this Order of which the marginal note is "Power to dredge" no sand mud or other materials dredged up or removed by the Company under the provisions of that section shall be laid down or deposited in any place within the limits of the port of King's Lynn as defined in section 45 (Limits of port defined) of the King's Lynn Conservancy Act 1897 and the Second Schedule to that Act without the consent in writing of the conservancy board having been first obtained :
- (4) Nothing in the section of this Order of which the marginal note is "Power to purchase dredgers &c." shall prejudice the rights of the conservancy board under section 60 (Powers as to tug boats) of the said Act of 1897 :
- (5) If for the purposes of or in connection with the exercise by the Company of any of the powers conferred upon them by this Order it shall be necessary to alter the position of any buoys belonging to the conservancy board such alteration shall be carried out by the Com-

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pany at their own expense and to the reasonable satisfaction of the conservancy board subject to the sanction of the Corporation of Trinity House of Deptford Strond and any damage caused by the Company to any such buoy shall be made good by the Company at the like expense and to the like satisfaction Any difference which may arise between the Company and the conservancy board under this subsection shall in default of agreement be submitted to and determined by the Corporation of Trinity House of Deptford Strond :

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- (6) Nothing in this Order shall take away lessen prejudice or interfere with any of the rights or powers of the conservancy board as the local lighthouse authority of and for the port of King's Lynn.

33.—(1) Nothing contained in the section of this Order of which the marginal note is "Power to maintain and improve works" shall authorise the Company to exercise any of the powers conferred by that section otherwise than in the river Ouse or on the bed or banks thereof or upon the property for the time being of the Company without the consent in writing of the mayor aldermen and burgesses of the borough of King's Lynn (hereinafter referred to as "the corporation") :

For protection of corporation of King's Lynn.

Provided that the Company shall not alter or interfere with any sewer or drain of the corporation in or on the bed or banks of the said river without such consent as aforesaid.

(2) Nothing contained in the said section of this Order of which the marginal note is "Power to maintain and improve works" shall authorise the Company without such consent as aforesaid to construct in the Fisher Fleet any such works as are referred to in that section or to interfere in any way with the entrance to or exit from the Fisher Fleet of vessels resorting thereto.

(3) Nothing in this Order shall affect any liability of the Company in respect of the Fisher Fleet or the roads or landing stages in connection therewith.

34. Nothing in this Order affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands or of the Board of Trade respectively without the consent in writing of the Commissioners of Crown Lands or of the Board of Trade as

Crown rights.

[Ch. cxlii.] *Pier and Harbour* [20 & 21 GEO. 5.]
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A.D. 1930. the case may be on behalf of His Majesty first had and obtained for that purpose.

King's Lynn.

Application of funds.

35. The Company may apply their funds to the purposes of this Order and may appropriate and apply to such purposes being purposes to which capital is properly applicable any of the moneys which they have raised or are authorised to raise and which may not be required for any purpose to which they are by any existing Act made specially applicable.

Costs of Order.

36. All costs charges and expenses of and incident to the preparing and obtaining of this Order and otherwise incurred in reference thereto shall be paid by the Company.

PORTSMOUTH (VICTORIA) PIER.

Portsmouth. Provisional Order empowering the Corporation of Portsmouth to construct a pier and other works in Portsmouth Harbour to levy rates and dues in respect thereof and for other purposes.

PRELIMINARY.

Short title. 1. This Order may be cited as the Portsmouth (Victoria) Pier Order 1930.

Commencement. 2. This Order shall come into operation upon the day when the Act confirming this Order is passed and that day is in this Order referred to as "the commencement of this Order."

Interpretation. 3.—(1) In this Order the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated with this Order have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Order unless the context otherwise requires—

"the Harbours Clauses Act 1847" means the Harbours Docks and Piers Clauses Act 1847;

"the Corporation" means the lord mayor aldermen and citizens of the city of Portsmouth;

"the works" means the works authorised by this Order or as the case may require any of them or any part thereof and includes any marine garage constructed in connection with the slipway (Work No. 2) by this Order authorised;

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“the pier” means the pier (Work No. 1) by this Order authorised; A.D. 1930.

“the deposited plan and sections” or “the deposited plan” or “the deposited sections” as the case may be means the plan and sections deposited with reference to this Order with the Ministry of Transport; Portsmouth.

“authorised rates” and “authorised rate” mean respectively the rates or rate which the Corporation are for the time being authorised to levy demand and recover in pursuance of this Order;

“the general rate fund” and “the general rate” mean respectively the general rate fund and the general rate of the city of Portsmouth;

“statutory securities” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation.

(2) In the application to this Order of the Harbours Clauses Act 1847 the expressions “packet boat or Post Office packet” and “Post Office bag of letters” used in that Act shall mean respectively a vessel employed by or under the Post Office or the Admiralty for the conveyance under contract of postal packets as defined by the Post Office Act 1908 and a mail bag as defined by the same Act:

Provided that nothing in the Harbours Clauses Act 1847 or in this Order shall exempt from rates duties regulation or control any such vessel as aforesaid if she also conveys passengers or goods for hire.

UNDERTAKERS.

4. The Corporation shall be the undertakers for carrying this Order into execution. Undertakers.

ACQUISITION OF LANDS.

5. The Lands Clauses Acts (except so much thereof as relates to the purchase and taking of lands otherwise than by agreement and to the entry upon lands by the promoters of the Incorporation of Lands Clauses Acts.

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A.D. 1930. undertaking) are hereby incorporated with this Order and for
— the purpose of that incorporation the term "special Act" in
Portsmouth. those Acts shall mean this Order.

Power to
take lands
by agree-
ment.

6. Subject to the provisions of this Order the Corporation may by agreement purchase or lease and use such of the lands shown on the deposited plan as may be requisite for the purposes of the works and they may further by agreement purchase and hold for the purposes of this Order any additional lands not exceeding in the whole two acres but with respect to such additional lands nothing in this Order or in the Acts incorporated therewith shall exempt the Corporation from any indictment action or other proceedings for nuisance in the event of any nuisance being caused or permitted by them thereon.

Power to
grant ease-
ments &c.

7. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may subject to the provisions of those Acts and of this Order grant to the Corporation for the purposes of this Order any easement right or privilege (not being an easement right or privilege of water in which other persons than the grantors have an interest) in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such easements rights and privileges respectively.

Power to
retain sell
&c. lands.

8.—(1) Notwithstanding anything in any Act or Order to the contrary the Corporation may retain hold and use for such time and for such purposes as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Order and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interests therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange :

Provided that the Corporation shall not without the consent of the Minister of Health sell lease exchange or otherwise dispose of any such lands or any interests therein at a price or rent or for a consideration of a value less than the current market value of such lands or interests but a purchaser or lessee shall not be concerned to inquire whether the consent of the said Minister is necessary or has been obtained :

Provided also that nothing in this section shall be taken to dispense with the consent of any Government department to any

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sale lease appropriation or other disposition of any lands of the Corporation in any case in which such consent would have been required if this Order had not been passed. A.D. 1930.
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Portsmouth.

(2) Nothing in this section contained shall release the Corporation or any person purchasing or acquiring any lands from them under this section from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which any such lands were or may hereafter be conveyed or leased to or otherwise acquired by the Corporation or any person from or through whom the Corporation may have derived or may hereafter derive title to the same but all such rents covenants restrictions reservations terms and conditions shall remain and be of as full force and effect and may be recovered exercised enjoyed and enforced in like manner and to the same extent as if this Order had not been passed.

LIMITS.

9.—(1) The limits within which the Corporation shall have authority under this Order and within which the powers of the pier-master may be exercised shall comprise the works and an area below high-water mark within a distance of fifty yards from any part of the works which limits are in this Order referred to as “the limits of this Order.” Limits.

(2) The limits within which the power to levy rates may be exercised (hereinafter referred to as “the rating limits”) shall comprise the works.

WORKS AND POWERS.

10. Subject to the provisions of this Order and subject also to such alterations (if any) in the deposited plan and sections as the Board of Trade and His Majesty's Principal Secretary of State for the War Department may require before completion of the works the Corporation may on the lands belonging to them or acquired under this Order and in the lines and according to the levels and within the limits of deviation shown on the deposited plan and sections make and maintain in the city of Portsmouth the following works :— Power to construct works.

Work No. 1 A pier jetty or landing stage partly of solid and partly of open-work construction and all works and conveniences necessary or convenient in connection therewith commencing at a point 13 yards or thereabouts south-east of the western corner of the Square Tower and terminating 38 yards or thereabouts measured in a

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south-westerly direction from the point of commencement ;

Work No. 2 A slipway partly of solid and partly of open-work construction and all works and conveniences necessary or convenient in connection therewith commencing at a point 4 yards or thereabouts north-west of the western corner of the Square Tower aforesaid and terminating 33 yards or thereabouts measured in a south-westerly direction from the point of commencement.

Power to deviate.

11. Subject to the provisions of this Order in constructing the works the Corporation may deviate laterally from the lines thereof as shown on the deposited plan to any extent not exceeding the limits of deviation shown on the said plan and they may deviate vertically from the levels thereof as shown on the deposited sections to any extent Provided that no deviation either lateral or vertical below high-water mark shall be made without the consent in writing of the Board of Trade and His Majesty's Principal Secretary of State for the War Department.

Maintenance and improvement of works.

12.—(1) Subject to the provisions of this Order the Corporation may maintain improve and strengthen the works and in connection therewith may from time to time construct erect maintain alter and improve all necessary jetties landing-places approaches steps warehouses offices sheds marine garages and other buildings cranes weighing machines machinery moorings buoys and other works apparatus and conveniences.

(2) Any electric and other apparatus and machinery constructed erected or maintained under this Order shall be so constructed erected maintained and worked as to prevent any interference with telegraphic communication by means of any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General.

Penalty for obstructing works.

13. Any person who wilfully obstructs any person acting under the authority of the Corporation in setting out the lines of the works or who pulls up or removes any poles or stakes driven into the ground for the purpose of such setting out shall for every such offence be liable to a penalty not exceeding five pounds.

Powers to cease in certain events.

14.—(1) If the works are not completed within five years from the commencement of this Order then on the expiration of that period the powers given by this Order to the Corporation for executing the works or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

(2) If the works are not substantially commenced within two years from the commencement of this Order or such extended

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time as the Minister of Transport may in the circumstances by order direct the said powers shall cease. A.D. 1930.

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(3) If the execution of the works after having been substantially commenced is virtually suspended for twelve consecutive months the said powers shall cease except as to so much of the works as is then completed unless the Minister of Transport by order direct that the said powers continue and remain in force but subject to the foregoing provision as to completion in any event within five years from the commencement of this Order.

(4) A certificate of the Minister of Transport to the effect that the works have not been substantially commenced or that they have been virtually suspended for twelve consecutive months shall for the purposes of this section be conclusive evidence of the facts stated in such certificate.

15. The Corporation may construct and maintain on the pier and may furnish and equip fishing-platforms pavilions saloons assembly concert lecture waiting refreshment reading and other rooms automatic-machines bicycle-stands band-stands shops bazaars kiosks aquaria lavatories baths and sanitary and other conveniences and they may also construct under the pier head and maintain floating swimming baths and may make such reasonable charges as they may determine for the use of such conveniences and for admission to such buildings or places as aforesaid. Power to erect pavilions and other buildings.

16.—(1) The Corporation may deepen dredge scour and excavate any portion of the foreshore and bed of the sea to any extent necessary to secure a sufficient waterway and approach to the pier for vessels using the same. Power to dredge.

(2) All sand mud and other materials dredged up or removed for the purposes and to the extent aforesaid shall be the property of the Corporation and they may sell or otherwise dispose of or remove or deposit the same as they think fit provided that no sand mud or other material shall be laid down or deposited in any place below high-water mark without the consent in writing of the Board of Trade having been first obtained.

(3) The powers of the Corporation under this section shall be exercisable subject to the provisions of the section of this Order of which the marginal note is "Crown rights" and in particular and without prejudice to that general limitation any consent given to the exercise of such powers by the Commissioners of Crown Lands or the Board of Trade on behalf of His Majesty may be given subject to such restrictions and conditions including the payment by the Corporation to the Commissioners of Crown Lands or the Board of Trade of royalties rents or sums of money

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A.D. 1930. in respect of materials raised from any place below high-water
 — mark and sold by the Corporation under this section or in respect
Portsmouth. of any place below high-water mark upon which materials may
 be deposited as may be fixed by the Commissioners of Crown Lands
 or the Board of Trade as the case may be.

(4) All money arising from any sale or other disposition of
 sand mud or other materials under this section after payment
 of the expenses connected therewith shall be applied in the same
 manner as the revenue arising from the works is to be applied.

Power to
 purchase
 dredgers &c.

17. The Corporation may provide purchase take on lease
 hire and use such steam or other dredgers eroders engines lighters
 or other vessels machinery and apparatus as they may think
 necessary for effecting the purposes of this Order and may let
 the same on hire for such sums and upon and subject to such
 terms and conditions as they may think fit or may sell or dispose
 of the same All sums received in respect of any such letting on
 hire shall be deemed to form part of the revenue arising from
 the works and all moneys realised by any such sale shall be
 applied towards carrying into effect any of the purposes of this
 Order to which capital is properly applicable.

Goods not to
 be landed
 without
 consent.

18. No merchandise animals or goods (passengers' personal
 luggage excepted) shall be landed on or at the works otherwise
 than with the consent of the Corporation.

Restrictions
 on mooring.

19. No vessel or boat of any kind shall be moored or attached
 alongside or to the works without the consent of the Corporation
 or the pier-master.

RATES.

Power to
 levy rates.

20. When in addition to the certificate to be granted under
 section 26 of the Harbours Clauses Act 1847 a certificate has been
 obtained from the Minister of Transport that all consents and
 approvals required under this Order or otherwise necessary for
 the due execution of the works have been given the Corporation
 may within the rating limits subject and according to the pro-
 visions of this Order levy and demand for the use of those works
 and the conveniences connected therewith and in respect of
 vessels boats persons and goods of every description and for
 services described in the schedule to this Order any rates not
 exceeding those specified in that schedule and they may receive
 and recover payment accordingly.

Rates may
 be levied
 though
 works not
 completed.

21. If it is at any time certified in writing under the hand of
 an officer to be appointed for the purpose by the Minister of
 Transport but to be paid by the Corporation that the works have
 been so far completed as to afford accommodation for the landing
 and embarking or the shipping and unshipping of passengers

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animals or goods by means of those works the Corporation may notwithstanding section 25 of the Harbours Clauses Act 1847 and although the whole of the works have not then been completed levy and demand such of the rates or such proportion of all or any of the rates specified in the schedule to this Order as will in the opinion of the Minister of Transport be commensurate with the accommodation afforded. A.D. 1930.
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Portsmouth.

22. The Corporation may (so far as the rates specified in the schedule to this Order do not extend) demand and recover such reasonable rates or other consideration as they may determine for the use of any marine garages warehouses sheds buildings yards weighing machines mooring posts cranes buoys works and conveniences belonging to or provided by the Corporation or in respect of any services rendered by them in connection with the works. Rates for
 warehouses
 &c.

23. The Corporation may confer vary or extinguish exemptions from and compound with any person with respect to the payment of rates or charges authorised by this Order but so that no preference be in any case given to any person over any other person using the works under the like circumstances and that anything done under this section shall not prejudice the other provisions of this Order. Power to
 vary exemp-
 tions and
 compound
 for rates.

24. No pass ticket or payment of rates payable under this Order for the use of the works shall entitle the holder of the pass ticket or the person paying to the use of the buildings and erections on the works or any of them or any part of the works which is set apart for a particular purpose unless the Corporation otherwise determine. Payment of
 rates not to
 confer right
 to use build-
 ings.

25. The Corporation may from time to time out of the revenue derived by them from any entertainments or performances given on the pier and out of the revenue arising from the works but subject to the provisions of the section of this Order of which the marginal note is "Application of revenue" provide and pay for or contribute towards the payment of bands of music concerts sports or other entertainments of any kind whatsoever on the pier or in the pavilions thereon and subscribe towards the funds of any regatta or fete held in the immediate vicinity of the pier. Power to
 contribute to
 entertain-
 ments.

26.—(1) Notwithstanding anything contained in this Order the Corporation may charge for every person entering upon and using the pier between the hours of six p.m. and ten p.m. on any day on which a concert or other public entertainment (lasting for at least one and a half hours between the said hours of six p.m. and ten p.m.) is held on the pier or in any pavilion building or room for the time being on the pier any sum not exceeding one shilling. Power to
 charge
 higher rates
 at certain
 times.

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(2) Any person who having already paid the ordinary charge for using the pier remains on the pier after six p.m. on any such day as in the preceding subsection mentioned shall have credit for the sum already paid by him and shall be liable in addition thereto to pay only the difference between the special charge and the sum already paid by him as aforesaid.

(3) The Corporation shall notwithstanding the progress of any concert or other public entertainment reserve a sufficient passage along the pier for all persons landing or embarking at the pier or jetties and that reserved passage shall be open for use by such persons at the ordinary charge and without payment of the special rate by this section authorised so long as they use the pier as a passage only and do not remain upon it.

(4) A copy of this section shall be exhibited in print at the entrance to the pier and in some conspicuous place or places on the pier.

Power to
close pier on
special
occasions.

27.—(1) The Corporation may on any special occasions but not on more than twenty-one days in any one year or for more than seven days consecutively close the pier or any part thereof against the public and may on such occasions admit any person to the pier or such part on payment of such special rates of admission not exceeding two shillings and sixpence for each person as the Corporation may determine.

(2) On all such occasions the Corporation shall reserve a sufficient passage along the pier between the landing steps and the shore for any persons landing or embarking at the pier the reserved passage to be open for use by those persons at the ordinary charge and without payment of any special rates so long only as they use the pier as a passage and do not remain upon it.

(3) The special rate charged under this section shall be in lieu of and not in addition to the rate specified in the schedule to this Order and any person paying the special rate shall not be liable to pay any further or other rate or sum for admission to the pier on the day for which the special rate is charged.

(4) During at least two days before the day on which the pier is to be closed the Corporation shall exhibit conspicuously at the entrance to the pier a notice of their intention to close the pier under this section.

Pass and
family
tickets.

28.—(1) The Corporation may grant pass tickets or family tickets to passengers and promenaders or others for the use of the pier (either inclusive or exclusive of admission to any building or room for the time being thereon) at such rates on such terms and for such periods not exceeding one year as the Corporation may determine and may issue books containing any number of pass tickets at a reduced rate and day tickets available for one day or

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part of a day only for any number of admissions on such day or part of a day at a reduced rate but so that no preference be given to any person.

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Portsmouth.

(2) The Corporation shall have power to prescribe the conditions on which pass tickets and family tickets are issued and the persons by whom such tickets may be used.

(3) A pass ticket shall not be transferable and shall not be used by any person except the person to whom it is granted. A pass ticket or family ticket shall not be used otherwise than in accordance with the conditions on which it is issued or after the period limited for its use.

(4) There shall be printed on every pass ticket and family ticket the terms and conditions upon and subject to which the same is issued.

(5) If any person wilfully and with intent to defraud acts in any way in contravention of the provisions of this section or uses or attempts to use any false or counterfeit ticket he shall for each offence be liable to a penalty not exceeding twenty shillings.

29.—(1) If it is represented by application in writing to the Minister of Transport (in this section referred to as "the Minister")

Revision of
rates.

(a) by any chamber of commerce or shipping or any representative body of traders or any person who in the opinion of the Minister is a proper person for the purpose ;
or

(b) by the Corporation ;

that under the circumstances then existing the authorised rates or any of them should be revised the Minister if he thinks fit may make an order revising the authorised rates referred to in the application or any of them and may fix the date as from which such order shall take effect and thenceforth such order shall remain in force until the same expires or is revoked or modified by a further order of the Minister made in pursuance of this section. Provided that before making an order under this section the Minister shall cause an inquiry to be held with reference thereto in pursuance of the Board of Trade Arbitrations &c. Act 1874 as applied by this section.

(2) When upon the application for revision of authorised rates or an authorised rate an order has been made or the Minister has decided not to make an order no further application for a revision of the rates or rate to which the application related shall be made within twelve months from the date of such order or decision as the case may be.

(3) The provisions of Part I of the Board of Trade Arbitrations &c. Act 1874 shall apply for the purposes of this section—

(a) as if the Minister were referred to therein in lieu of the Board of Trade ;

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(b) as if the person or persons duly authorised to hold any inquiry thereunder were the rates advisory committee constituted under the Ministry of Transport Act 1919 or any sub-committee thereof to which the said advisory committee may under section 2 of the Harbours Docks and Piers (Temporary Increase of Charges) Act 1920 have delegated their powers or in the event of the said advisory committee ceasing to exist some persons with similar qualifications to be appointed for the purpose by an order of the Minister under section 2 of the said Act of 1874; and

(c) as if in section 4 of the said Act of 1874 the words "under the seal of the Minister of Transport" were substituted for the words "by writing under the hand of the President or of one of the secretaries of the Board."

(4) An application made to the Minister under this section shall be accompanied by such information and particulars as the Minister may consider relevant certified in such manner as he may require and the Minister and the body or persons holding an inquiry for the purposes of this section may call for such documents and accounts as they may consider relevant and may hear such witnesses as they shall think fit and shall have power to take evidence on oath and for that purpose may administer oaths.

POWERS OF LEASING.

Power to
lease works
or rates.

30.—(1) The Corporation may with the previous consent in writing of and upon such terms conditions and restrictions and for such period as may be approved by the Minister of Transport lease to any company corporation or person (a) the works or any of them or any part thereof or (b) the right to collect and retain the rates authorised by this Order.

(2) As from the commencement of any lease made under the last preceding subsection the lessee during the continuance of and to the extent provided in his lease shall have and may exercise all or any of the powers conferred upon the Corporation by this Order which the Corporation have or might exercise under this Order and shall be subject to all the liabilities and obligations to which the Corporation are subject and shall perform all the duties of the Corporation under this Order.

(3) No lease made under subsection (1) of this section shall be assignable without the previous consent in writing of the Minister of Transport and the provisions of this Order with respect to such lease or to the lessee shall apply to any such assignment or to the assignee respectively.

(4) The Corporation shall within one month after the date of any lease made under this section deposit a certified copy thereof

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at the Ministry of Transport and shall upon failure to do so be liable to a penalty not exceeding twenty pounds. A.D. 1930.

(5) No lease made under this section shall be made in consideration or part consideration of any fine premium or other capital sum.

Portsmouth.

(6) Nothing in this section shall exempt the Corporation from their obligation to keep and render accounts and as from the date of any lease made under this section all the provisions of the Acts incorporated with this Order and of this Order as to the keeping delivery and audit of accounts shall apply to and be binding upon as well the lessee as the Corporation and all moneys received by the Corporation under or in respect of any such lease shall be deemed to be moneys levied by virtue of and income received under this Order.

31. The Corporation may let for hire or lease for any term not exceeding seven years any pavilions rooms shops baths sheds warehouses or other buildings separately from any other part of the works to any company corporation or person upon such terms pecuniary or otherwise and under such restrictions and conditions as they may determine. Power to lease pavilions &c.

FINANCE.

32.—(1) The Corporation may independently of any other borrowing power from time to time borrow— Power to borrow.

(a) for or in connection with the construction of the works ten thousand pounds;

(b) with the consent of the Minister of Transport such further sum or sums as may from time to time be required for any of the purposes of this Order; and

(c) such sum as may be required for the payment of the costs charges and expenses of this Order.

(2) In order to secure the repayment of money borrowed for the purposes mentioned in this section and the payment of interest thereon the Corporation may mortgage or charge as well the general rate fund and general rate as the revenue arising from the works.

33. The Corporation shall pay off all moneys borrowed by them under this Order within the respective periods following which periods shall be the prescribed periods for the purposes of this Order (that is to say):— Periods for repayment of money borrowed.

As to the money borrowed for the purpose (a) mentioned in the section of this Order of which the marginal note is “ Power to borrow ” within thirty years from the date or dates of borrowing;

As to the money borrowed for the purpose (b) mentioned in the same section within such period as the Minister of Transport may prescribe;

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As to the money borrowed for the purpose (c) mentioned in the same section within five years from the commencement of this Order.

Application
of money
borrowed.

34. The money borrowed under this Order shall be applied only for the purposes of this Order for which capital money may properly be applied and not otherwise.

Provisions of
Public
Health Act
1875 as to
mortgages to
apply.

35. Subject to the provisions of section 149 (Power to use one form of mortgage for all purposes) of the Portsmouth Corporation Act 1920 the following sections of the Public Health Act 1875 shall extend and apply to mortgages granted under this Order (that is to say) :—

Section 236 (Form of mortgage);

Section 237 (Register of mortgages);

Section 238 (Transfer of mortgages).

Protection of
lender from
inquiry.

36. A person lending money to the Corporation under this Order shall not be bound to inquire as to the observance by the Corporation of any of the provisions of this Order or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof.

Corporation
not to regard
trusts.

37. The Corporation shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Corporation shall be a sufficient discharge to the Corporation in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Council have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest therein not entered in their register.

Appoint-
ment of a
receiver.

38.—(1) The holders of any security given in respect of money borrowed under this Order may enforce payment of arrears of interest or principal or principal and interest due on their securities by the appointment of a receiver.

(2) In order to authorise the appointment of a receiver in respect of arrears of principal or principal and interest the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten per centum of the total amount of the money then borrowed under this Order and not paid off.

(3) Sections 86 and 87 of the Commissioners Clauses Act 1847 shall be incorporated with this Order and in those sections the expression "commissioners" shall mean the Corporation and the expressions "mortgage" and "mortgagee" shall respectively include any security for money borrowed under this Order and the holder of any such security.

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39. The revenue arising from the works including the interest on the contingency fund when that fund amounts to the maximum hereinafter prescribed shall be applied for the purposes and in the order following and not otherwise (that is to say):—

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Portsmouth.

Application
of revenue.

- (1) In payment if the Corporation determine to pay them out of revenue of the costs of and connected with the preparation and making of this Order;
- (2) In payment of all expenses connected with the management and maintenance of the works;
- (3) In paying year by year the interest for the time being due in respect of moneys borrowed under this Order;
- (4) In paying the instalments as they become due in discharge of any money so borrowed and repayable by instalments and in forming a sinking fund in accordance with this Order for payment of principal moneys borrowed under this Order;
- (5) In payment so far as the Corporation think fit so to do of any expenses incurred in advertising the pier and any performances fetes or other attractions thereon or in connection therewith the payment of or contributions towards a band or bands of music playing on the pier and the provision of concerts or entertainments thereupon and subscribing towards the funds of any regatta or fete held in the immediate vicinity of the pier;
- (6) In creating and maintaining if they think fit a contingency fund in manner specified in the section of this Order of which the marginal note is "Contingency fund";
- (7) In repaying to the general rate fund all moneys and interest paid thereout for the purposes of the works whether in respect of money borrowed or otherwise;
- (8) In the general improvement of the works; and
- (9) The balance shall subject to the provisions of this Order be carried to the general rate fund.

40. The Corporation shall pay off all money borrowed by them under the powers of this Order either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within one year from the date of borrowing or when the money is repayable by half-yearly instalments within six months.

Mode of
payment off
of money
borrowed.

41.—(1) The Corporation shall have power—

- (a) To borrow for the purpose of paying off any moneys previously borrowed under this Order which are intended to be forthwith repaid; or

Power to
reborrow.

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A.D. 1930.

—
Portsmouth.

(b) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under this Order and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(a) By instalments or annual payments; or

(b) By means of a sinking fund; or

(c) Out of moneys derived from the sale of land; or

(d) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Sinking fund.

42.—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed under this Order the sinking fund shall be formed and maintained either—

(a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a “non-accumulating sinking fund”; or

(b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations by way of compound interest at a rate not exceeding three and a half pounds per centum per annum or such other rate as the Minister of Health may from time to time approve will be sufficient to pay off within the prescribed period the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called an “accumulating sinking fund.”

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in

[20 & 21 GEO. 5.] *Pier and Harbour* [Ch. cxlii.]
Orders Confirmation (No. 2) Act, 1930.

respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest trust moneys or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority as defined by section 34 of the Local Loans Act 1875 but exclusive in every case of the securities of the Corporation and the Corporation shall be at liberty from time to time to vary and transpose the investments.

A.D. 1930.

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Portsmouth.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(4) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the moneys for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by the sinking fund or the part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Corporation.

(6) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards such annual payments.

(7) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Order shall be paid by the Corporation in addition to the payments provided for by this Order.

(8) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with (in the case of an accumulating sinking fund) the probable accumulations thereon will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Minister of Health that any such increase is necessary the

[Ch. cxlii.] *Pier and Harbour* [20 & 21 GEO. 5.]
Orders Confirmation (No. 2) Act, 1930.

A.D. 1930. Corporation shall increase the payments to such extent as that
Minister may direct.

Portsmouth.

(9) If the Corporation desire to accelerate the repayment of any loan they may with the approval of the Minister of Health increase the amounts payable to any sinking fund.

(10) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with (in the case of an accumulating sinking fund) the probable accumulations thereon will in the opinion of the Minister of Health be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as that Minister may approve.

(11) If the amount in any sinking fund at any time together with (in the case of an accumulating sinking fund) the probable accumulations thereon will in the opinion of the Minister of Health be sufficient without any further payments thereto to repay the loan in respect of which it is formed within the prescribed period the Corporation may with the consent of that Minister discontinue the equal annual payments to the sinking fund until that Minister otherwise direct.

(12) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Minister of Health may determine.

Return to
Minister of
Health with
respect to
repayment
of debt.

43.—(1) The town clerk shall if and when he is requested by the Minister of Health so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Corporation under the authority of this Order.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister of Health may require and shall if so required by him be verified by statutory declaration of the town clerk or other the chief accounting officer of the Corporation and shall be transmitted within one month after the making of the request and in the event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(3) If it appears to the Minister of Health by such a return as aforesaid or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to

[20 & 21 GEO. 5.] *Pier and Harbour* [Ch. cxlii.]
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appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by the Order in pursuance of which the moneys are raised or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

A.D. 1930.

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Portsmouth.

44. All charges on the revenue arising from the works which that revenue may be insufficient to meet shall be charged on and paid out of the general rate fund and the general rate and the Corporation shall include in each rate the amount (if any) which according to their estimate may be required to cover the deficiency accruing during the currency of the rate and also the amount (if any) which is required to make up any deficiency which has actually occurred during any previous period.

Deficiency of revenue to be charged on general rate fund.

45.—(1) Subject to the provisions of this Order with reference to the application of the revenue arising from the works the Corporation may in any year if they think fit for the purpose of forming and maintaining a contingency fund not exceeding at any one time (inclusive of accumulations of income) two-fifths of the aggregate capital sums for the time being expended by the Corporation on the works and in order to meet any deficiency of revenue or any extraordinary claim or demand or any unforeseen accident or extraordinary damage which may happen or be caused to the works set apart out of such revenue such a sum as they may think fit.

Contingency fund.

(2) Every sum set apart under this section shall be invested in statutory securities and the interest thereon shall be accumulated until the fund reaches two-fifths of the aggregate capital sums for the time being expended by the Corporation on the works or is required for any of the purposes mentioned in this section.

46.—(1) The Corporation shall within two months after the date to which their annual accounts and balance sheet are made up send a copy of the same to the Ministry of Transport and section 16 of the General Pier and Harbour Act 1861 Amendment Act shall apply to and include the Corporation and any and every such accounts.

Annual account to be sent to Ministry of Transport.

(2) The Corporation shall as from the expiration of that period be liable to a penalty not exceeding twenty pounds for

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A.D. 1930. every week or part of a week during which they refuse or neglect
—
Portsmouth. to comply with the foregoing provisions.

(3) The accounts of the Corporation referred to in this section and in section 50 of the Harbours Clauses Act 1847 respectively shall be made up to the end of the thirty-first day of March in each year.

BYELAWS.

Byelaws. 47.—(1) The byelaws which may from time to time be made by the Corporation in exercise of the power in that behalf conferred on them by section 83 of the Harbours Clauses Act 1847 may provide for imposing a penalty not exceeding forty shillings for the breach or non-observance of any of the byelaws.

(2) No byelaw shall come into operation until it has received the allowance and confirmation of the Minister of Transport and that allowance and confirmation shall be sufficient for all purposes:

Provided that in the case of any byelaw which the said Minister in consultation with the Board of Trade shall deem primarily to concern the interests of navigation the provisions of this section shall apply as if the said Board were substituted for the said Minister and the allowance and confirmation of any such byelaw by the Minister of Transport or the Board of Trade respectively shall be sufficient evidence of compliance with the provisions of this section.

(3) Sections 84 and 85 of the Harbours Clauses Act 1847 shall not be incorporated with this Order.

LIFE-SAVING APPARATUS.

Exclusion of sections 16 to 19 of Harbours Clauses Act 1847. 48. Sections 16 to 19 inclusive of the Harbours Clauses Act 1847 shall not be incorporated with this Order.

Life-saving apparatus may be attached to pier. 49. The officers of the coast-guard and all other persons for the time being actually employed in connection with the life-boat or the apparatus for saving life may either permanently or temporarily without payment attach or cause to be attached to any part of the pier spars and other apparatus for saving life and may also either in course of using or of exercising the apparatus for saving life fire rockets over the pier.

Life-buoys to be kept. 50. The Corporation shall at all times keep at convenient places on the pier and in obedience to any requirements which may be made by the Board of Trade life-buoys and life-lines in good order and fit and ready for use.

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LIGHTS.

A.D. 1930.

51.—(1) After the completion of the works the Corporation shall at the outer extremity of those works below high-water mark of ordinary spring tides exhibit and keep burning every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Corporation of Trinity House Deptford Strond shall from time to time direct.

Portsmouth.
 Permanent
 lights on
 works.

(2) If the Corporation fail to comply in any respect with the provisions of this section they shall be liable on summary conviction to a penalty not exceeding twenty pounds and in the case of a continuing offence to an additional penalty not exceeding two pounds for every day on which after conviction thereof they so fail.

52. In case of injury to or destruction or decay of the works or any part thereof so far as the same shall be constructed on under or over any tidal waters or tidal lands below high-water mark of ordinary spring tides the Corporation shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Corporation of Trinity House Deptford Strond and shall apply to that Corporation for directions as to the means to be taken and the Corporation shall be liable on summary conviction to a penalty not exceeding ten pounds and in the case of a continuing offence to an additional penalty not exceeding one pound for every day during which they omit after conviction thereof so to apply or refuse or neglect to obey any direction given in reference to the means to be taken.

Provision
 against
 danger to
 navigation.

MISCELLANEOUS.

53. The Corporation may appoint officers for securing the observance of the byelaws and regulations made by the Corporation under this Order and may from time to time procure such officers to be sworn as constables for that purpose but no such officers shall act as constables until so sworn in and unless in uniform or provided with a warrant.

Appoint-
 ment of
 officers to
 enforce bye-
 laws and
 regulations.

54. Sections 12 and 13 of the Harbours Clauses Act 1847 shall not be incorporated with this Order.

Application of
 Harbours Clauses
 Act 1847.

55. All penalties under this Order shall be recovered and applied as penalties are recoverable and applicable under the Harbours Clauses Act 1847.

Recovery of
 penalties.

56. Officers of the Board of Trade and Ministry of Transport and police officers acting in the execution of their duty shall at all times have free ingress passage and egress to along and from the works without payment.

Officers
 exempt from
 rates.

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A.D. 1930.

Portsmouth.
 Local
 lighthouse
 authority.

Crown
 rights.

57. The Corporation shall within the limits within which they shall have authority under this Order be a local lighthouse authority for the purpose of the Merchant Shipping Act 1894.

58. Nothing in this Order affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Corporation to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands or of the Board of Trade respectively without the consent in writing of the Commissioners of Crown Lands or of the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose.

Costs of
 Order.

59. All costs charges and expenses of and incident to the preparing and obtaining of this Order and otherwise incurred in reference thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of money borrowed for the purposes of the promotion of this Order or out of the revenue arising from the works.

The SCHEDULE referred to in the foregoing Order.

I.

RATES ON VESSELS USING THE PIER.

	£	s.	d.
All lighters for each trip per ton - - - - -	0	0	6
All boats entirely open landing or taking on board passengers or goods each - - - - -	0	0	6
For every other vessel under the burden of 15 tons per ton register - - - - -	0	0	4
For every vessel of the burden of 15 tons and under 50 tons per ton register - - - - -	0	0	6
For every vessel of the burden of 50 tons and under 100 tons per ton register - - - - -	0	0	8
For every vessel of the burden of 100 tons and under 150 tons per ton register - - - - -	0	0	10
For every vessel of the burden of 150 tons and up- wards per ton register - - - - -	0	1	0

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II.

Portsmouth.

RATES FOR GOODS SHIPPED OR UNSHIPPED AT THE PIER.

	£	s.	d.
Light goods per cubic foot - - - - -	0	0	1
Heavy goods per ton - - - - -	0	2	0

In charging the rates on goods the gross weight or measurement of all goods to be taken and for any less weights measures and quantities than those above specified a proportion of the respective rates shall be charged.

III.

RATES FOR USE OF WEIGHING MACHINES.

	£	s.	d.
For goods weighed for each ton or part of a ton -	0	0	2

IV.

RATES ON PASSENGERS AND PROMENADERS USING THE PIERS.

	£	s.	d.
For every passenger or other person landing on the pier from or embarking from it on board of any ship vessel boat packet or passage boat for each time any sum not exceeding - - - - -	0	0	4
For every person using the pier for the purpose of walking for exercise pleasure or any other purpose except for bathing embarking or disembarking for each time any sum not exceeding - - - - -	0	0	3
For every bath-chair (including attendant) taken on the pier for each time any sum not exceeding -	0	0	4
For every perambulator (including attendant) taken on the pier for each time any sum not exceeding -	0	0	6
For every person using the pier for the purpose of bathing any sum not exceeding - - - - -	0	0	6
For every motor-car taken on the pier but not shipped or unshipped for each time any sum not exceeding	0	5	0
For every bicycle or tricycle taken on the pier but not shipped or unshipped for each time any sum not exceeding - - - - -	0	0	2

The master and every member of the crew of any vessel within the rating limits shall be entitled to use the pier free of charge for the purpose of landing from or embarking on board his vessel.

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A.D. 1930.

V.

Portsmouth.

RATES ON PASSENGERS' LUGGAGE.

	£	s.	d.
For every trunk portmanteau box parcel or other pack- age within the description of luggage and not borne by the passenger not exceeding 28 lbs. -	0	0	2
Over 28 lbs. and not exceeding 84 lbs. -	0	0	4
Over 84 lbs. and not exceeding 112 lbs. -	0	0	5
Over 112 lbs. and not exceeding 140 lbs. -	0	0	6
Over 140 lbs. and not exceeding 196 lbs. -	0	0	7
Over 196 lbs. and not exceeding 2 cwt. -	0	0	8
If exceeding 2 cwt. for every 28 lbs. weight in addition	0	0	1

VI.

RATES FOR SUPPLYING WATER ON PIER.

	£	s.	d.
Water per 1,000 gallons - - - - -	0	10	0

VII.

RATES FOR ANIMALS.

	£	s.	d.
Horses - - - - - each	0	1	6
Asses mules bulls cows and oxen - - - each	0	1	0
Calves sheep and pigs - - - each	0	0	3
Lambs dogs and other small animals - - each	0	0	2

WEYMOUTH AND MELCOMBE REGIS HARBOUR.

*Weymouth
and
Melcombe
Regis.*

*Provisional Order for authorising sanctioning and con-
firming the construction by the mayor aldermen and
burgesses of the borough of Weymouth and Melcombe
Regis of extensions of their existing quays and for
other purposes.*

Short title.

1. This Order may be cited as the Weymouth and Melcombe
Regis Harbour Order 1930.

Commence-
ment of
Order.

2. This Order shall come into operation upon the day when
the Act confirming this Order is passed and that day is in this
Order referred to as "the commencement of this Order."

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3. In this Order unless the context otherwise requires—

A.D. 1930.

“The borough” means the borough of Weymouth and Melcombe Regis;

—
*Weymouth
and
Melcombe
Regis.*

“The Corporation” means the mayor aldermen and burgesses of the borough;

Interpreta-
tion.

“The harbour” means the harbour of Weymouth and Melcombe Regis;

“The harbour undertaking” means the undertaking carried on by the Corporation at and in connection with the pier authorised by the Weymouth and Melcombe Regis Markets and Pier Act 1854 (not including the pavilion winter gardens and skating rink erected on that pier) and the harbour;

“The harbour revenue” means and includes all moneys receivable by the Corporation for and in relation to the harbour undertaking other than borrowed moneys and moneys which ought to be carried to capital account;

“The works” means the works authorised by this Order or as the case may be any part thereof;

“The Act of 1914” means the Weymouth and Melcombe Regis Corporation Act 1914;

“The Order of 1925” means the Weymouth and Melcombe Regis Harbour Order 1925.

4. The Corporation shall be the undertakers for carrying this Order into execution.

Under-
takers.

5. Subject to the provisions of this Order and subject also to such alterations (if any) in the plans and sections deposited with reference to this Order as the Board of Trade may require before completion of the works the Corporation may on the lands in the borough belonging to them and in the lines and according to the levels and within the limits of deviation shown on the deposited plans and sections make and maintain the following works (namely) :—

Power to
construct
works.

Work No. 1 An extension of the existing quay of the Corporation on the southerly side of the harbour with an embankment and an enlargement of the southerly approaches to the Town Bridge commencing in the quay wall in the North Quay at a point 120 feet north-west of the north-easterly corner of Phoenix Building and terminating in the quay wall in Trinity Street at a point 55 feet north-north-east of the north-easterly corner of the King's Arms inn;

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A.D. 1930.

—
*Weymouth
 and
 Melcombe
 Regis.*

Work No. 3 An extension of the existing quay of the Corporation on the northerly side of the harbour with an embankment commencing in the quay wall at a point 50 feet or thereabouts south-west of the south-westerly corner of the Sailor's Return public house and terminating in the said northerly quay wall at a point 58 feet or thereabouts south-east of the south-easterly corner of the Royal Oak inn.

Power to deviate.

6. In constructing the works the Corporation may deviate laterally from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and they may deviate vertically from the levels of the works as shown on the deposited sections to any extent. Provided that no deviation either lateral or vertical below high-water mark shall be made without the consent in writing of the Board of Trade.

Penalty for obstructing works.

7. Any person who wilfully obstructs any person acting under the authority of the Corporation in setting out the lines of the works or who pulls up or removes any poles or stakes driven into the ground for the purpose of setting out such lines shall for every such offence be liable to a penalty not exceeding five pounds.

Powers to cease in certain events.

8.—(1) If the works are not completed within five years from the commencement of this Order then on the expiration of that period the powers given by this Order to the Corporation for executing the works or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

(2) If any of the works is not substantially commenced within two years from the commencement of this Order or such extended time as the Minister of Transport may in the circumstances by order direct the power to construct such work shall cease.

(3) If the execution of the works after having been substantially commenced is virtually suspended for twelve consecutive months the said powers shall cease except as to so much of the works as is then completed unless the Minister of Transport by order direct that the said powers continue and remain in force but subject to the foregoing provision as to completion in any event within five years from the commencement of this Order.

(4) A certificate of the Minister of Transport to the effect that the works have not been substantially commenced or that they have been virtually suspended for twelve consecutive months shall for the purposes of this section be conclusive evidence of the facts stated in such certificate

Power to borrow.

9. The Corporation may from time to time independently of any other borrowing power borrow at interest on the security

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of the harbour revenue and the general rate fund and the general rate of the borough—

A.D. 1930.

—
*Weymouth
and
Melcombe
Regis.*

- (a) for and in connection with the construction of the works thirty-two thousand six hundred and seven pounds ;
- (b) for the payment of the costs charges and expenses of and incidental to the preparing and obtaining of this Order such sum as may be requisite.

10. All moneys borrowed by the Corporation under the authority of this Order shall be paid off within the periods hereinafter respectively mentioned which periods shall be deemed to be the prescribed periods for the purposes of the enactments applied by this Order (that is to say) :—

Repay-
ment of
borrowed
money.

As to moneys borrowed for the purpose (a) mentioned in the section of this Order of which the marginal note is “Power to borrow” within fifty years from the date or dates of borrowing ;

As to moneys borrowed for the purpose (b) mentioned in the same section within five years from the commencement of this Order.

11.—(1) The following provisions of the Act of 1914 and of the Order of 1925 shall with any necessary modifications extend and apply to the exercise of the powers of this Order as if the same were re-enacted in this Order (namely) :—

Application
of provisions
of Act of
1914 and
Order of
1925.

The Act of 1914—

- Section 7 (Subsidiary works and powers in connection with works) ;
- Section 87 (Mode of raising money) ;
- Section 88 (Provisions as to mortgages) ;
- Section 89 (Protection of lenders from inquiry) ;
- Section 91 (Mode of payment off of money borrowed) ;
- Section 92 (Sinking fund) ;
- Section 95 (Appointment of receiver) ;
- Section 101 (Incorporating certain sections of Act of 1887) :

Provided that the said section 92 shall for the purposes of this Order be read and have effect as if in subsection (1) (b) of that section a rate not exceeding three pounds ten shillings per centum

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A.D. 1930. per annum or such higher rate as the Minister of Health may from
 — time to time approve had been therein referred to instead of a rate
Weymouth not exceeding three pounds per centum per annum.
 and
Melcombe

Regis. The Order of 1925—

Section 6 (Power to maintain and improve works);

Section 7 (Power to dredge &c.);

Section 8 (Power to purchase dredgers &c.);

Section 9 (Provision against danger to navigation);

Section 10 (Permanent lights on works);

Section 20 (Application of money borrowed).

(2) Nothing in this Order shall prejudice or affect the rights or powers of the Corporation under section 98 (Power to use one form of mortgage for all purposes) of the Act of 1914.

Works to be
 part of har-
 bour under-
 taking.

12. Subject to the provisions of this Order the works shall for the purposes of rates and for all other purposes be and be deemed to be part of the harbour undertaking.

Power to
 Corporation
 and railway
 companies to
 enter into
 agreements
 with respect
 to construc-
 tion and user
 of Work
 No. 3.

13. The Corporation and the Great Western Railway Company and the Southern Railway Company may subject to the observance by the said companies of the provisions of this Order so far as the same are applicable make and carry into effect agreements with respect to the construction and user by the said companies or either of them of Work No. 3 by this Order authorised or any part or parts thereof.

Crown
 rights.

14. Nothing in this Order affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Corporation to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands or of the Board of Trade respectively without the consent in writing of the Commissioners of Crown Lands or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose.

Crown
 minerals.

15. Notwithstanding the provisions contained in the section of this Order of which the marginal note is "Crown rights" or in any public statute His Majesty and His lessees for their respective interests may work any minerals belonging to His Majesty in right of His Crown under or adjacent to lands and works of the Corporation authorised to be taken or constructed by this Order.

[20 & 21 GEO. 5.] *Pier and Harbour* [Ch. cxlii.]
Orders Confirmation (No. 2) Act, 1930.

16. All costs charges and expenses of and incidental to the preparation and obtaining of this Order and otherwise incurred in reference thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the harbour revenue or the general rate fund and general rate of the borough or out of moneys borrowed for the purposes of the promotion of this Order.

A.D. 1930.

—
*Weymouth
and
Melcombe
Regis.*

Costs of
Order.

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FOR

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